

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

November 24, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR - Jack R. Spiker; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Bob Nicholas, Acting City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Dr. Rinne, Mayor Spiker announced agenda item #26(a) would be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON NOVEMBER 10, 2008. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON NOVEMBER 17, 2008. Motion (per Consent Agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mr. Collins moved to limit debate for the current meeting to a maximum of 10 minutes for any member of the governing body to talk on any one motion, seconded by Mr. Segrave. Mayor Spiker advised the motion was non-debatable. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no"

Mayor Spiker opened a public hearing for the purpose of receiving comments and input on the proposed sale of surplus city transit vehicles to other Wyoming governmental entities known as the Tourism Promotion Joint Powers Board (d/b/a Cheyenne Area Convention and Visitors Bureau) and the Wind River Transportation Authority. Joe Dougherty, Cheyenne Transit Director, explained the purpose of declaring 4 transit vehicles as surplus and proposed transfer of ownership to other governmental entities pursuant to federal program requirements, and provided information on the distribution of sales funds between the Federal Transit

Administration and the City, indicating a slight adjustment may be made to the sales price pursuant to FTA's approval of the vehicles' valuation. There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD).” Dr. Rinne declared a conflict of interest (nearby property owner interests) and vacated Council Chambers. Katharine Kunz, speaking in opposition to the zone change, submitted and discussed a petition (on file with the City Clerk's office) signed by 45 individuals, the majority of whom reside within the general neighborhood area, who are opposed to the zone change, and read the introduction of the petition. Also speaking in opposition to the zone change were June Lopez Wood, Terri Foley, Jack Knudson, Gloria Milmont, April Brimmer Kunz and Joe Kasper. Topics of concern presented included: Zone change resulting in deterioration and disruption of the neighborhood's residential integrity; commercial development on north side of Storey Blvd.; traffic and safety; PlanCheyenne guidelines for area growth; inconsistency of zone changes involving commercial uses in established residential neighborhoods; changing the residential character of the neighborhood; support for a Mixed Use Residential (MUR) zone instead of a Neighborhood Business zone; past actions on the proposed ordinance by the governing body and Planning Commission; provisions of Wyo. Stat. §15-1-601(d)(iv) and 15-1-603(a); petition that had been submitted; governing body discretion with reference to potential arbitrary and capricious actions; previous amendment to the ordinance involving conditional zoning and effect on potential future property owner(s); previous actions by the governing body involving other similar zone change requests, and the effect of “block busting” and precedence setting if the zone change was approved. Brandon Bailey spoke in favor of the zone change, expressing his support for small businesses and the opportunity the business would provide local artists to display and sell items. Debb Roden, Woodhouse Law Office, attorney representing the property owners, spoke in favor of the zone change and responded to the concerns that had been presented involving traffic, PlanCheyenne, language contained in state statutes relating to zoning, and the previously approved amendment concerning a conditional zoning provision that would limit the types of uses allowed on the property. Ms. Roden provided information on proposed business hours and the types of items that would be available for sale; property owners' compromise (i.e. conditional zoning) efforts, and referenced a previous communication she had submitted involving filing of the conditional zoning information with the County real estate office to assist with title searches applicable to any future property owners of the site. Ron Pinther commented on a recent zone change request he had submitted that was denied by the governing body; spoke in favor of implementing a neighborhood mediation process for zone change requests of this type, and stated his support generally for this proposed zone change. Reporting for Public Services Committee, Mr. Collins advised there was no recommendation on the item from the Committee. Mr. Brown moved to approve on third and final reading, seconded by Mr. Segrave. Comment followed on examples of other small businesses located within residential environments, state statute phrase of “arbitrary and capricious” relative to the conditional zoning amendment, and whether a possible MUR zone had been reviewed by staff. Upon inquiry, Bob Nicholas, Acting City Attorney, stated the phrase “arbitrary and capricious” is a legal term and

any challenge to Council members' actions would be resolved through a court of law, and advised that the petition submitted appeared to not invoke a "super majority" vote requirement (per state statute) as it had not been represented, only inferred, to Council that the signatures received constituted 20% of the adjacent property owners located within 140 feet of the property involved. Martin Matsen, Development Director, confirmed a MUR zone district had been discussed during the process and that a larger property coverage area was required, and the applicants did not pursue a request for that zone type. Discussion followed and included the conditional zoning amendment previously approved, which limits the property's commercial use and affords some protection to the neighborhood; spot zoning; protection of established residential neighborhoods; future uses of properties north of Storey; commercial business sites available in the community, and concern with conditional zoning limitations generally. Motion carried. Voting "yes" – Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Segrave, Mr. Valdez and Mayor Spiker. Voting "no" – Ms. Case, Mr. Collins and Mr. Laybourn voting "no". Following announcement of the vote, Dr. Rinne returned to Council Chambers. (#3832)

"AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY ADDING CHURCHES AS A USE REQUIRING ADMINISTRATIVE APPROVAL IN THE FOLLOWING ZONE DISTRICTS: NB-NEIGHBORHOOD BUSINESS DISTRICT, CB-COMMUNITY BUSINESS DISTRICT, MUR-MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT, MUB-MIXED USE WITH BUSINESS EMPHASIS DISTRICT, AND BY ADDING CHURCHES AS A USE REQUIRING BOARD APPROVAL IN THE LI-LIGHT INDUSTRIAL DISTRICT." Judy Fernandez, speaking on behalf of Restoration Fellowship Church, spoke in favor of the ordinance, stating the church was attempting to purchase a former building that had been used for commercial sales. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#3833)

"AN ORDINANCE AMENDING SECTION 6.12.020, RABIES TAGS, OF CHAPTER 6.12, DOG AND CAT REGISTRATION, AND SECTION 6.16.020, RABIES VACCINATION REQUIRED, OF CHAPTER 6.16, RABIES CONTROL, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Due to postponement from Oct. 27, 2008, the item was referred to Public Services Committee.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)." Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Concern was expressed with lack of control over services provided by the South Cheyenne Water and Sewer District. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Segrave voting "no".

"AN ORDINANCE AMENDING CERTAIN SECTIONS OF ORDINANCE #3733 PERTAINING TO THE ORIGINAL PUD PLANNED UNIT DEVELOPMENT DISTRICT ZONING CLASSIFICATION FOR JL RANCH AND INCORPORATING JL RANCH II AND JL RANCH III SUBDIVISIONS INTO THE PUD PLANNED UNIT DEVELOPMENT

DISTRICT, BEING PORTIONS OF SECTION 1 AND 2, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH OF I-80, EAST OF SOUTH INDUSTRIAL ROAD)." Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-1 HIGH-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT FOR THE W¹/₂ OF TRACT 10, AIRPORT VALLEY TRACTS, ALSO TO BE KNOWN AS A PORTION OF CANDLEWOOD SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO CROW ROAD, SOUTH OF STOREY BOULEVARD)." Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE CREATING SECTION 8.60.160(D), NOTIFICATION OF COSTS, OF CHAPTER 8.60, NUISANCES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING" -- referred to Finance Committee (sponsor - Ms. Broyles).

"A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE)." Mr. Collins moved to adopt, seconded by Mr. Brown. Mr. Collins moved to postpone to Dec. 22, 2008, seconded by Ms. Broyles. Motion to postpone carried. Voting "yes" – all members of the governing body.

"A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYOMING STATUTE §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF SWAN RANCH SITUATED IN SECTIONS 11 AND 12, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING (LOCATED ALONG CLEAR CREEK SOUTH OF AND INCLUDING I-80 RIGHT-OF-WAY AND EAST OF AND INCLUDING I-25 RIGHT-OF-WAY)." Gay Woodhouse, Woodhouse Law Office, attorney representing several property owners in the area, referenced a letter she had previously submitted to the governing body on the proposed annexation and stated her belief that compliance with annexation contiguity criteria had not been met. She distributed and reviewed information in support of her statements concerning contiguity and explained the process utilized in measuring the distances and ascertaining the percentage of shared common boundaries with the City (6.2%) which she feels does not meet contiguity requirements. Ms. Woodhouse displayed and discussed a 2004 City map, submitting a handout depicting a portion of the map involving the property area, reflecting City boundaries and property contiguity, and inside vs. outside growth of the City. (Information submitted on file with City Clerk's office.) She expressed concerns with public safety, points of access/egress and barriers (right-of-way, railroad), traffic flow and volume of semi-truck traffic in the area, and health, safety and welfare issues affecting the neighborhood. Speaking in opposition to the proposed annexation were: John Fafoutakis, David Wilkinson, Brenda Rath, Dean Marrs, Glenn

Connor, Eleanor Sterman, Leo Garcia and Kay Sheehan. Topics presented and discussed included: Area ingress/egress; timeliness of emergency responders; train crossing volume and safety; traffic congestion; road surface conditions; Wyo. Dept. of Transportation and Laramie County traffic count data (handout submitted and on file with City Clerk's office); residential composition of the neighborhood; hazardous materials transported by trains in the area; suggestion the agenda item be postponed to acquire updated traffic count data; unknown development/use of the property if annexed, and current vs. anticipated future traffic volume in the area. Brad Emmons, AVI Engineering, agent for the applicant, advised a definite use for the property has not yet been disclosed by the owner but that any use must meet City development and platting requirements. Upon inquiry concerning the discrepancy in the percentage of contiguity arrived upon by City staff vs. Ms. Woodhouse's statements, Mr. Emmons advised the surveyor and City staff should be the individuals to review the issue, and Ms. Woodhouse stated her belief that staff's computation included an additional 550 ft. which reflects a "point to point" scenario and should not be included. Mr. Collins moved to adopt, seconded by Ms. Broyles. Upon inquiry, Martin Matsen, Development Director, and Matt Ashby, Urban Planning Director, provided information on the Unified Development Code (UDC) project and clarified during the process, involving the consultant and public input meetings, a conceptual plan involving the area was developed as an example to show how a new option for mixed uses under the proposed UDC could be developed. Upon inquiry, Brandon Cammarata, Urban Planning Office, reviewed the process utilized in calculating the percentage of contiguity. Discussion included concern with unknown future use of the property, developments in the area, quality and smart growth, and property contiguity. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case, Mr. Laybourn and Mr. Valdez voting "no". (#5085)

[CA] "A RESOLUTION PURSUANT TO WYO. STAT. §15-1-112(B)(I) DECLARING AS SURPLUS CITY-OWNED CHEYENNE TRANSIT PROGRAM PROPERTY CONSISTING OF THREE TROLLEYS AND ONE BUS, AND AUTHORIZING THE DIRECTOR OF THE CITY OF CHEYENNE TRANSIT PROGRAM TO PROCEED WITH THE SALE OF SAID PROPERTY IN ACCORDANCE THEREWITH AND FINDING THAT THE SALE MEETS THE REQUIREMENTS THEREOF" -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF GATEWAY SOUTH, A REPLAT OF A PORTION OF TRACT 1, ALLISON TRACTS AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)" -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF CANDLEWOOD SUBDIVISION, A REPLAT OF THE W½ OF TRACT 10, AIRPORT VALLEY TRACTS AND LOTS 2 AND 3, BLOCK 1, GUY SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO CROW ROAD, SOUTH OF STOREY BOULEVARD)" -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF JL RANCH II, A REPLAT OF LOT 16, BLOCK 1, JL RANCH,

CHEYENNE, WYOMING (LOCATED SOUTH OF I-80 AND HR RANCH ROAD, EAST OF COLLEGE DRIVE)" -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF JL RANCH III, A REPLAT OF A PORTION OF LOT 6, BLOCK 7, JL RANCH AND A PORTION OF SECTION 2, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH OF I-80 AND HR RANCH ROAD, EAST OF COLLEGE DRIVE)" -- referred to Public Services Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat for South Park Estates 6th Filing, a replat of portions of South Park Estates, 2nd Filing, Interior Heights, Stanfield Addition Blocks 694 and 744, Standfield 3rd Addition and portions of Blocks 713-714, 754-756 and 775-777, Original City, Cheyenne, Wyoming (located north of I-80 between Partoyan Drive and Walterscheid Boulevard). Mr. Collins moved to acknowledge receipt with staff recommendations #1 through 6 and Planning Commission condition #7, seconded by Mr. Segrave. Concern with access onto Walterscheid from 1st Street was expressed. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

LEASES/CONTRACTS/LEGAL:

[CA] Contract between the City of Cheyenne and WINhealth Partners for city employee health coverage -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 3 to Contract No. 5066 between the City of Cheyenne and Utah Pacific Bridge and Steel Ltd., for additional storage charges for the fabrication of high performance weathering steel box girders, Norris Viaduct Replacement (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-5-09 for a contract between the City of Cheyenne, Parks & Recreation, and Recco, Inc. d/b/a Five-R Co., Cheyenne WY, for the Cheyenne Youth Activity and Community Center Project (1% Specific Purpose Sales & Use Tax). Mark Shubert and John Fafoutakis spoke in opposition to the amount of expense that would be incurred to renovate the existing building. Topics discussed included: Age and condition of the building, wise use of taxpayer's money; property acquisition, due diligence efforts, and prior work conducted on the building. Mayor Spiker provided information on property acquisition for the park; indicated a state grant application had been submitted to assist with the cost of renovating the building, and clarified the type of grant being sought is specific to existing structures only. Todd Feezer, Assistant Director, Parks and Recreation, stated input at numerous public meetings held to determine park amenities included requests that the facility include community gathering space, and provided information on work that had been accomplished, costs, and architect and structural engineer inspections that had been conducted which resulted in a portion of the

building being demolished. Rudy Apodaca spoke in support of the contract and inclusion of a youth activity/community center. Reporting for Finance Committee, Mr. Segrave moved to accept the bid in the amount of \$1.6 million for Phase I, seconded by Mr. Valdez. Upon inquiry, Mr. Feezer reviewed funding sources for the park project involving Phase I and Phase II. Discussion followed on amenities to be provided; funding; use of existing Parks and Recreation Neighborhood Facility; design elements; facility staffing and operational costs; future involvement of the park; specific purpose sales tax use for land acquisition and park development costs; funding for Phase I and Phase II development; bidding process, including value engineering, and grant funding opportunities. Upon inquiry, Ray Fertig, Recco, Inc., reviewed aspects of the bid submitted and value engineering items, stating renovations for Phase I would provide a functioning building with a useable interior. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#5321)

[CA] Consideration of Bid #M-7-09 for a contract between the City of Cheyenne, Engineering Dept., and Tarco, Inc., Arvada, CO, for the Henderson Basin Flood Control Improvement Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-09 between the City of Cheyenne, Parks & Recreation, and CPS Distributors, Inc., Cheyenne, WY for furnishing misc. irrigation supplies for the South Cheyenne Community Park Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-13-09 between the City of Cheyenne, Street & Alley, and Bobcat of Cheyenne, for furnishing one new rubber tire skid-steer loader and equipment with trade-in of used loader (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-14-09 between the City of Cheyenne, Sanitation Dept, and Ameri-Tech Equipment Co., Evansville, WY, for furnishing a recycle depot (consisting of 6 individual 6-yard containers) -- referred to Finance Committee.

APPOINTMENTS:

[CA] Appointment of Marcia Mead to the Art in Public Places Committee; Wendy Owen and Richard Ammon to the Historic Preservation Board; and Robert Geringer to the Cheyenne Housing Authority. Motion (per Consent Agenda) carried.

[CA] Re-appointment of Kimberly Elfering to the Mayor's Council for People with Disabilities; Nancy Abraham and Shirley Flynn to the Historic Preservation Board; and Keith Fox to the Building Code Board of Appeals. Motion (per Consent Agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held December 8, 2008 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for JKLL, Inc., d/b/a Game On Sports Bar, 1617 Capitol Ave., Cheyenne, WY. (License currently held by Cheyenne Club, Inc., d/b/a The Cheyenne Club, 1617 Capitol Ave., Cheyenne, WY).

Announcement was made of a Public Hearing to be held December 8, 2008 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Bedrock Seafood, Inc., d/b/a River Mountain Seafood Restaurant, 112 W. 17th St., Cheyenne, WY. (License currently held by JKLL, Inc., d/b/a Game On Sports Bar, 112 W. 17th St., Cheyenne, WY).

Announcement was made of a Public Hearing to be held December 8, 2008 at 6:00 p.m. in City Council Chambers for a transfer of location for a retail liquor license application filed with the City Clerk's Office for HEJE, Inc., [d/b/a to be determined], 4503 Western Way, Cheyenne, WY. (License currently located at 3839 E. Lincolnway, Cheyenne, WY).

Announcement was made of the re-appointment of Mal Burnside, Al Cassidy, and Dan Edeen to the Contractor Licensing Board, to be confirmed December 8, 2008.

OTHER CITY BUSINESS:

John Fafoutakis expressed his concerns with the signal timing rotation for a traffic light located at Forest Dr. and Pershing; current and future traffic volume at Walterscheid and West Allison Road; loud music from vehicle sound systems, and irresponsible pet owners who do not spay and neuter pets.

Ms. Case referenced a letter Mayor Spiker recently sent to Governor Dave Freudenthal requesting consideration of additional funding for municipalities during the state's budget process to assist with ongoing expenses and revenue shortfalls, and questioned the state's fiscal responsibilities to help fund cities and towns. Mayor Spiker provided information on the purpose of the letter, noted the effect of reduced monies to municipalities due to the food sales tax exemption, and advised the Wyoming Association of Municipalities had adopted resolutions at its state convention in support of pursuing additional state funding to make municipalities "whole" with regard to food sales tax backfill.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:12 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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